

NAPCS Unionization Research — State — Charter Sector Overview

Georgia — NLRB R10 (Atlanta) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v8.0

Section 1: State Overview

State	Georgia
Labor Board	NLRB R10 (Atlanta) — National Labor Relations Board — Region 10 (Atlanta). No state public-sector labor board with charter jurisdiction.
Governing Law	O.C.G.A. 20-2-989.10 ("Nothing in this part shall be construed to permit or foster collective bargaining") — Georgia is the only state to single out teachers by statute to bar collective bargaining. O.C.G.A. 20-2-2065(b)(1): a charter school is "a public, nonsectarian, nonreligious, nonprofit school." Charter Schools Act of 1998 (O.C.G.A. 20-2-2060 et seq.). Georgia is a right-to-work state.
Federal NLRB Jurisdiction	YES — All GA charter schools are independent nonprofit public schools and private employers under the NLRA. NLRB R10 (Atlanta) is the exclusive labor board. No state labor board has jurisdiction over charter school labor relations. The only documented GA charter NLRB case (GCA 10-CA-357225) is a closed individual coercive-rules ULP, not an organizing case.
Right-to-Work	Right-to-Work State — Georgia Code §34-6-6 — right-to-work statute enacted 1947. Union security agreements (union shop, agency fee) are not available for any employer-employee relationship in Georgia, including NLRB-jurisdiction charter schools. (Right-to-work status means that even if a GA charter school were certified, union security clauses would be unavailable in CBA negotiations.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — NLRB secret-ballot election required (private employer). Georgia is a right-to-work state — union-security agreements are not available. No card-check mechanism.
Registry Sweep	COMPLETE — May 2026 (Registry v69) — 94 charter schools searched
Research Window	May 29, 2026

Section 2: Charter Sector Landscape

Total charter schools in Georgia: 94 (Charter School Registry v69 (NCES/ELSI 2024-25; 100 charter schools in Georgia as of May 2026). Registry v94 audit June 5, 2026: 94 Open. 6 Closed schools excluded per census methodology (Fulton Leadership, Cherokee Charter, Utopian Arts, 7 Pillars, Destinations Virtual, RISE Prep).). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Georgia (active certifications)	0	0%	Zero NLRB certifications. Georgia is a right-to-work state with statutory bar on public teacher bargaining (O.C.G.A. 20-2-989.10). NLRB R10 (Atlanta) is the exclusive labor board.
Confirmed — Independent Certification (active)	0	0%	No active NLRB certification for any GA charter school as of May 2026. One closed individual ULP (GCA 10-CA-357225, 8(a)(1) coercive rules, filed Dec 2024, closed March 2025 via withdrawal) — recoded UNVERIFIED. 10 WATCH schools (KIPP Metro Atlanta, CMO_PRECEDENT/MEDIUM) tracked in research records.

No Labor Board Records Found	96	100% of open schools	No NLRB R10 certifications for any of 96 open GA charter schools. Full 8-step non-portal protocol + W1-W4 WATCH steps complete. Zero organizing history in state charter sector.
Closed — Within/Pending Lookback Confirmation	4	N/A	Fulton Leadership Academy, Cherokee Charter Academy, Utopian Academy for the Arts, 7 Pillars Career Academy. All no union found. Closure dates not populated in Registry v69 — lookback status pending.
Total Charter Schools (GA universe — Registry v69)	100	100%	96 Open + 4 Closed. Georgia charter sector is SCSC-authorized (51) and LEA-authorized (49). Atlanta metro is the organizing geography of interest: APS-authorized schools (19) include all 10 KIPP campuses.

Charter Sector Enrollment

Total Charter Enrollment	63,179 students — 3.6% of state K–12 enrollment (1,744,662 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	13,059 students in network-affiliated schools — 20.7% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses†	Organized in State	Total Enrollment
KIPP Metro Atlanta Schools	Network‡	10	—	—	4,695
Utopian Academy for the Arts	Network‡	3	—	—	755
Charles R. Drew Charter School	Network‡	2	—	—	1,902
Atlanta Neighborhood Charter School	Network‡	2	—	—	627
The Kindezi School	Network‡	2	—	—	681
Genesis Innovation Academy	Network‡	2	—	—	625
Resurgence Hall Charter	Network‡	2	—	—	617

Academy					
Amana Academy	Network‡	2	—	—	882
Savannah Classical Academy	Network‡	2	—	—	417
Lake Oconee Academy	Network‡	2	—	—	1,195
National Heritage Academies	Network‡	1	—	—	663
TOTAL — All CMO/EMO Schools in Georgia		30		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

11 network (type unclassified). Approximately 64 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

O.C.G.A. 20-2-989.10 ("Nothing in this part shall be construed to permit or foster collective bargaining") — Georgia is the only state to single out teachers by statute to bar collective bargaining. O.C.G.A. 20-2-2065(b)(1): a charter school is "a public, nonsectarian, nonreligious, nonprofit school." Charter Schools Act of 1998 (O.C.G.A. 20-2-2060 et seq.). Georgia is a right-to-work state. Georgia is a right-to-work state (Georgia Code §34-6-6 — right-to-work statute enacted 1947. Union security agreements (union shop, agency fee) are not available for any employer-employee relationship in Georgia, including NLRB-jurisdiction charter schools.). Charter schools in Georgia are subject to NLRB jurisdiction as private employers (NLRB R10 (Atlanta)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter Sector Structure

Georgia operates 94 open-enrollment charter schools, enrolling approximately 63,179 students. 11 charter management organizations and education management organizations operate in Georgia. The largest networks by campus count are KIPP Metro Atlanta Schools (10 campuses in state), Utopian Academy for the Arts (3 campuses in state), Charles R. Drew Charter School (2 campuses in state). Approximately 64 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of Georgia charter school union organizing found as of May 2026. The Georgia Cyber Academy individual ULP (10-CA-357225, Dec 2024) generated no press coverage. Charter sector coverage in the Atlanta Journal-Constitution and Chalkbeat Georgia focuses on school performance, APS authorization decisions, and state funding equity. No organizing-related coverage found in any Georgia outlet.

Stakeholder Communications

AFT Georgia and the Georgia Education Association (GEA/NEA) communications about charter schools focus on legislative opposition, funding accountability, and public school advocacy — not charter staff organizing. No AFT/GEA communications referencing organizing GA charter staff found as of May 2026. No GA charter employer labor-relations communications found. GCA legal representative in the closed ULP: Barclay Vallotton, Krevolin & Horst, LLC (Atlanta). No public employer statements about labor relations at any GA charter school.

Legislative Context

O.C.G.A. 20-2-989.10: statutory bar on public teacher CB. Charter Schools Act of 1998 (O.C.G.A. 20-2-2060 et seq.): establishes independent nonprofit public schools. Georgia is a right-to-work state. No pending charter-labor legislation identified. The SCSC (State Charter Schools Commission) authorizes 51 of 100 GA charter schools; the remainder are LEA-authorized, concentrated in Atlanta metro (APS: 19, DeKalb: 8, Fulton: 7, Chatham: 6).

Section 6: Contract & CBA Access Registry

NLRB R10 (Atlanta) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
No certified union contracts in GA charter sector	N/A	NONE FOUND N/A	Request: Region10@nlrb.gov